Rod M. Fliegel, Bar No. 168289
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Telephone: 415.433.1940
Facsimile: 415.399.8490

Karimah J. Lamar, Bar No. 246862
klamar@littler.com
Christine Fitzgerald, Bar No. 259014
cfitzgerald@littler.com
Robert Geiger, Bar No. 322914
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Telephone: 619.232.0441
Facsimile: 619.232.4302

Attorneys for Defendant
THE VONS COMPANIES, INC.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191

DEFENDANT THE VONS COMPANIES, INC.'S ANSWER TO PLAINTIFF ROBERTO SANDOVAL CARRILLO'S COMPLAINT

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

The Vons Companies, Inc. ("Defendant") hereby answers the Complaint ("Complaint") filed by plaintiff Roberto Sandoval Carrillo ("Plaintiff) as follows:

The prefatory paragraph in the Complaint contains legal conclusions to which no response is required. Insofar as that is not the case, Defendant denies the allegations contained therein.

SUMMARY OF ACTION

1. Defendant admits that Plaintiff's Complaint purports to assert claims for violations California law against Defendant. Defendant specifically denies that there is either a factual or legal basis for Plaintiff's claim against Defendant or that Plaintiff is entitled to any relief sought from Defendant. To the extent that the allegations contained in Paragraph 1 of the Complaint are deemed factual, Defendant denies the allegations in Paragraph 1.

2. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 2 against co-defendant One Source Technology, LLC d/b/a/ Asurint ("Asurint") and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 2.

3. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 3 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 3.

THE PARTIES

4. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 4 and denies those allegations on that basis.

5. Defendant admits that it is incorporated in Michigan with a principal place of business in Pleasanton, California. Defendant denies all other allegations in Paragraph 4.

6. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 6 and denies those allegations on that basis.

/ / /

/ / /

7. Paragraph 7 of the Complaint alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

JURISDICTION AND VENUE

8. Paragraph 8 of the Complaint alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies each and every allegation in Paragraph 8.

9. Defendant admits that it has a principal place of business in Pleasanton, California. The balance of Paragraph 9 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies each and every allegation in Paragraph 9.

STATEMENT OF FACTS

10. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 10 and denies those allegations on that basis.

11. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 11 and denies those allegations on that basis.

12. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 12 and denies those allegations on that basis, except Defendant admits that as of today's date, information about Plaintiff is listed on the California Megan's Law website.

13. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 13 and denies those allegations on that basis.

14. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 14 and denies those allegations on that basis.

15. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 15 and denies those allegations on that basis.

/ / /

/ / /

16. Defendant admits that in January 2023, Plaintiff applied for a deli associate position, Defendant provided him with a conditional offer of employment, and Plaintiff began working for Defendant in January 2023.

17. Defendant admits that the job duties of a deli associate include but are not limited to taking orders, cooking, serving food, cleaning the work area, and providing exceptional customer service. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 17 and denies those allegations on that basis.

18. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 18 and denies those allegations on that basis.

19. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 19 and denies those allegations on that basis.

20. Paragraph 20 of the Complaint purports to recite portions of a document that speaks for itself. Defendant denies the allegations in Paragraph 20 on that basis.

21. Paragraph 21 of the Complaint purports to recite portions of document that speaks for itself. Defendant denies the allegations in Paragraph 21 on that basis.

22. Paragraph 22 of the Complaint purports to recite portions of document that speaks for itself. Defendant denies the allegations in Paragraph 22 on that basis.

23. Paragraph 23 of the Complaint purports to recite portions of document that speaks for itself. Defendant denies the allegations in Paragraph 23 on that basis.

24. Paragraph 24 of the Complaint purports to recite portions of document that speaks for itself. Defendant denies the allegations in Paragraph 24 on that basis.

25. Denied.

26. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 26 against co-defendant Asurint and denies those allegations on that basis. Defendant's factual investigation is ongoing. Based on its factual investigation to date, Defendant admits the following:

- In or about July 2016, Plaintiff, apparently a former teacher at a Chula

Vista High School learning center, was indicted in federal court for various felony sexual offenses **involving the possession of child pornography** in U.S. District Court Case No. 3:16-cr-01694-JLS-1 (S.D. Cal.).

- In or about May 2017, Plaintiff entered a **guilty plea** in Case No. 3:16-cr-01694-JLS-1 to Count One of the federal indictment, and specifically for violation of 18 U.S. Code § 2252.
- In or about August 2017, the federal court sentenced Plaintiff to serve a prison sentence of 97 months and 10 years of supervised release after his release from prison.
- Plaintiff appealed his sentence to the Ninth Circuit and in December 2018, the Ninth Circuit affirmed the sentence imposed by the district court in Ninth Circuit Case No. No. 17-50335.
- In or about October 2023, Plaintiff was released from incarceration for a felony offense **involving the possession of child pornography**.
- As just one of the conditions of Plaintiff's release, he must "**Not initiate any contact (personal, electronic or otherwise) or associate with anyone under the age of 18, unless in the presence of a supervising adult who is aware of the offender's deviant sexual behavior and nature of offense and conviction, with the exception of the offender's biological children, unless approved in advance by the probation officer**."
- Plaintiff was required to register with the state as a dangerous convicted sexual offender following his release from incarceration for a felony offense **involving the possession of child pornography**.

/ / /

/ / /

/ / /

/ / /

- Within a **short time** after Plaintiff's release from incarceration for a felony offense **involving the possession of child pornography**, and while he **remained** on supervised release, he sought employment with Defendant in a store in San Diego where Defendant **regularly employs minors**.
- Defendant hired Plaintiff to work as a deli associate before Defendant received and reviewed his background report.
- Upon receiving Plaintiff's background report, Defendant made a preliminary determination that Plaintiff was unsuitable for continued employment in the role of deli associate in a store where Defendant **regularly employs minors**, and provided preliminary and then final notice to Plaintiff in accordance with applicable law.

27. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 27 and denies those allegations on that basis.

CLASS ACTION ALLEGATIONS

28. Defendant admits that Plaintiff purports to assert putative class action claims. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 28 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 28.

29. Paragraph 29 of the Complaint alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies each and every allegation in Paragraph 29.

30. Denied.

31. Denied.

32. Denied.

33. Denied.

34. Denied.

35. Denied.

36. Defendant is without sufficient knowledge or information to form a belief as

to the truth of the allegations in Paragraph 36 and denies those allegations on that basis.

37. Paragraph 37 of the Complaint alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 37 and denies those allegations on that basis.

38. Paragraph 38 of the Complaint alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 38 and denies those allegations on that basis.

39. Paragraph 39 of the Complaint alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies the allegations in Paragraph 39.

40. Denied. Based on its ongoing factual investigation to date, Defendant further notes the following information that is pertinent to Plaintiff's allegation that he supposedly is an **adequate class representative**:

- In December 2024, a Petition for Warrant or Summons for Offender Under Supervision was filed with the federal court in Case No. 3:16-cr-01694-JLS-1 because Plaintiff's probation officer determined that Plaintiff **violated the terms of his supervised release** by among other things viewing pornography on his computer on August 4, 2024.
- In January 2025, Plaintiff **admitted** to the federal court that he **violated the terms of his supervised release** by among other things viewing pornography on his computer, and as a result, the federal court restarted his term of supervised release and added further special conditions.
- Plaintiff is seeking to appeal the federal court's order to the Ninth Circuit, including seeking to stay a **mandatory psychological examination**.
- In his unredacted and public filings with the federal court in **February 2025**, Plaintiff stated he has been "**diagnosed with schizoaffective**

disorder by multiple psychiatrists over many years, and this diagnosis has remained consistent." (Dkt. 131; emphasis added.)

41. Denied.

42. Denied.

43. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 43 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 43.

FIRST CAUSE OF ACTION

44. Defendant repeats and reasserts its responses to each of the preceding Paragraphs 1-43 as fully set forth herein.

45. Paragraph 45 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

46. Paragraph 46 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

47. Denied. Defendant also repeats and reasserts in full its response to Paragraph 26.

48. Denied.

SECOND CAUSE OF ACTION

49. Defendant repeats and reasserts its responses to each of the preceding Paragraphs 1-48 as fully set forth herein.

50. Paragraph 50 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

51. Paragraph 51 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

52. Paragraph 52 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

53. Paragraph 53 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

54. Paragraph 54 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis, except Defendant admits that it hired Plaintiff to work as a deli associate.

55. Paragraph 55 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis, except Defendant admits that it hired Plaintiff to work as a deli associate.

56. Denied. Defendant also repeats and reasserts in full its response to Paragraph 26.

57. Denied. Defendant also repeats and reasserts in full its response to Paragraph 26.

58. Denied. Defendant also repeats and reasserts in full its response to Paragraph 26.

59. Denied. Defendant also repeats and reasserts in full its response to Paragraph 26.

60. Denied.

THIRD CAUSE OF ACTION

61. Defendant repeats and reasserts its responses to each of the preceding Paragraphs 1-60 as fully set forth herein.

62. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 62 and denies those allegations on that basis.

63. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 63 and denies those allegations on that basis.

64. Paragraph 64 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

65. Defendant admits that it utilizes Asurint's services. Defendant is without sufficient knowledge or information to form a belief as to the truth of the remaining allegations in Paragraph 65 and denies those allegations on that basis.

66. Defendant is without sufficient knowledge or information to form a belief as

to the truth of the allegations in Paragraph 66 and denies those allegations on that basis.

67. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 67 and denies those allegations on that basis.

FOURTH CAUSE OF ACTION

68. Defendant repeats and reasserts its responses to each of the preceding Paragraphs 1-67 as fully set forth herein.

69. Paragraph 69 alleges legal conclusions to which no response is required. To the extent that a response is required, Defendant denies those allegations on that basis.

70. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 70 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 70.

71. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 71 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 71.

72. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 72 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 72.

73. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 73 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 73.

74. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 74 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 74.

75. Defendant is without sufficient knowledge or information to form a belief as to the truth of the allegations in Paragraph 75 against co-defendant Asurint and denies those allegations on that basis. Defendant denies all other allegations in Paragraph 75.

/ / /

/ / /

AFFIRMATIVE AND OTHER DEFENSES

Defendant asserts the following defenses. In so doing, Defendant does not concede that it has the burden of production or proof as to any defense asserted below. Further, Defendant does not presently know all the facts concerning Plaintiff's conduct sufficient to state all defenses at this time. Accordingly, Defendant will seek leave of this Court to amend this Answer should it later discover facts demonstrating the existence of additional defenses. Defendant also expressly denies the existence of any alleged putative class of "similarly situated" individuals that Plaintiff purports to represent in this lawsuit pursuant to Federal Rule of Civil Procedure 23. All defenses are asserted against the putative classes.

FIRST AFFIRMATIVE DEFENSE

(Failure to State Cause of Action)

1. As a separate and distinct affirmative defense, Defendant alleges that the Complaint and each cause of action therein fail to state facts sufficient to constitute causes of action.

SECOND AFFIRMATIVE DEFENSE

(Laches)

2. As a separate and distinct affirmative defense, Defendant alleges that the Complaint and each cause of action alleged therein are barred, in whole or in part, by the doctrine of laches.

THIRD AFFIRMATIVE DEFENSE

(Waiver of Rights)

3. As a separate and distinct affirmative defense, Defendant alleges that any recovery on Plaintiff's Complaint is barred, in whole or in part, to the extent that Plaintiff, by reason of acts, conduct, and/or omissions, has waived or released his rights, if any, to obtain the relief sought in the Complaint.

/ / /

/ / /

/ / /

FOURTH AFFIRMATIVE DEFENSE

(Estoppel)

4. As a separate and distinct affirmative defense, Defendant alleges that the Complaint and each cause of action alleged therein are barred, in whole or in part, by the doctrine of estoppel.

FIFTH AFFIRMATIVE DEFENSE

(Unclean Hands)

5. As a separate and distinct affirmative defense, Defendant alleges that the Complaint and each cause of action alleged therein are barred, in whole or in part, by the doctrine of unclean hands.

SIXTH AFFIRMATIVE DEFENSE

(Conduct by Others)

6. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's Complaint cannot be maintained against Defendant because any alleged losses or harms sustained by Plaintiff, if any, which Defendant denies, resulted from causes other than any act or omission, if any, by Defendant.

SEVENTH AFFIRMATIVE DEFENSE

(Legitimate Business Reasons/Business Necessity)

7. As a separate and distinct affirmative defense, Defendant alleges that it acted reasonably and in good faith at all times material herein based on all relevant facts and circumstances known at the time and that all actions taken with regard to Plaintiff were taken for business necessity and/or for lawful, legitimate, non-discriminatory business reasons.

/ / /

/ / /

/ / /

/ / /

/ / /

EIGHTH AFFIRMATIVE DEFENSE

(Same Decision/Mixed Motive)

8. As a separate and distinct affirmative defense, Defendant alleges that if any unlawful discriminatory or retaliatory motive existed in connection with any employment decision involving Plaintiff, which Defendant denies, any and all claims for damages are nevertheless barred because such employment decision would have been the same even without any such unlawful discriminatory or retaliatory motive.

NINTH AFFIRMATIVE DEFENSE

(No Entitlement to Prejudgment Interest)

9. As a separate and distinct affirmative defense, Defendant alleges that the Complaint and each cause of action set forth therein fail to state a claim upon which prejudgment interest may be granted because the damages claimed are not sufficiently certain to allow an award of prejudgment interest.

TENTH AFFIRMATIVE DEFENSE

(Lack of Malice, Fraud, Oppression, or Intent)

10. As a separate and distinct affirmative defense, Defendant alleges that the Complaint, and each and every cause of action alleged therein, is barred because Defendant lacked sufficient intent for the commission of the matters alleged in the Complaint and did not act with any specific malice, fraud, or oppression or ill intent towards Plaintiff.

ELEVENTH AFFIRMATIVE DEFENSE

(Managerial Privilege)

11. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's Complaint cannot be maintained because Defendant alleges that its conduct (and the conduct of Defendant's officers, managers or employees while acting in the course and scope of their employment) is protected by the managerial privilege in that all actions taken with respect to Plaintiff's employment were undertaken and exercised with proper managerial discretion in good faith, and for proper, lawful reasons.

/ / /

TWELFTH AFFIRMATIVE DEFENSE

(After-Acquired Evidence)

12. As a separate and distinct affirmative defense, Defendant alleges that to the extent it acquires any evidence of wrongdoing by Plaintiff during the course of this litigation, which would have resulted in the same decisions regardless of the alleged conduct by Defendant, such after-acquired evidence shall bar Plaintiff's claim on liability or damages or shall reduce such claims as provided by law.

THIRTEENTH AFFIRMATIVE DEFENSE

(Failure to Mitigate)

13. As a separate and distinct affirmative defense, Defendant alleges that any recovery to which Plaintiff might be entitled (and Defendant does not admit that Plaintiff is entitled to any recovery) must be reduced by reason of Plaintiff's failure and/or refusal to exercise reasonable diligence to mitigate his damages.

FOURTEENTH AFFIRMATIVE DEFENSE

(Penal Code § 290.46(j) – Void for Vagueness)

14. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under Penal Code section 290.46(j) is barred because the statutory provision is void for vagueness and cannot be constitutionally enforced against Defendant.

FIFTEENTH AFFIRMATIVE DEFENSE

(Penal Code § 290.46(j) – Authorized Use)

15. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under Penal Code section 290.46(j) fails, in whole or in part, because, and to the extent that, Defendant was authorized to use information regarding Defendant's sexual offender profile to protect persons at risk.

/ / /

/ / /

/ / /

SIXTEENTH AFFIRMATIVE DEFENSE

(Penal Code § 290.46(j) – No "Use" of Information)

16. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under Penal Code section 290.46(j) fails, in whole or in part, because, and to the extent that, Defendant did not use Plaintiff's sexual offender profile for employment purposes.

SEVENTEENTH AFFIRMATIVE DEFENSE

(FEHA – No Standing)

17. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under the Fair Employment and Housing Act, Government Code section 12952, is barred because Plaintiff does not have a beneficial interest in the claim sufficient to confer standing to bring such claim in this Court.

EIGHTEENTH AFFIRMATIVE DEFENSE

(FEHA – Not Most Qualified)

18. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under the Fair Employment and Housing Act, Government Code section 12952, is barred, or Plaintiff's damages are limited, in whole or in part, because, and to the extent that, Plaintiff was not the most qualified candidate for each of the jobs for which he alleges he applied, and thus did not consider or rely upon Plaintiff's conviction history in such hiring decisions.

NINETEENTH AFFIRMATIVE DEFENSE

(FEHA – No "Use" of Information)

19. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under FEHA fails, in whole or in part, because, and to the extent that, Defendant did not use Plaintiff's criminal conviction history in violation of the FEHA.

/ / /

/ / /

TWENTIETH AFFIRMATIVE DEFENSE

(FEHA – Exclusion)

20. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's cause of action and claim under FEHA fails, in whole or in part, because, and to the extent that, Defendant is excluded from coverage of Government Code section 12952 by subpart (d)(4) of that section, which provides: "This section does not apply in any of the following circumstances: . . . To a position where an employer or agent thereof is required by any state, federal, or local law to conduct criminal background checks for employment purposes or to restrict employment based on criminal history. . . ."

TWENTY-FIRST AFFIRMATIVE DEFENSE

(Adequate Remedy at Law)

21. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims for injunctive and other equitable relief are barred, in whole or in part, because Plaintiff has an adequate remedy at law.

TWENTY-SECOND AFFIRMATIVE DEFENSE

(No Standing)

22. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff lacks standing to pursue the claims alleged in the Complaint on behalf of himself.

TWENTY-THIRD AFFIRMATIVE DEFENSE

(Good Faith)

23. As a separate and distinct affirmative defense, Defendant alleges that any claim for damages or penalties under California Business and Professions Code section 17200, et seq. fails because Defendant did not willfully fail to comply with the provisions of the California Business & Professions Code, instead acting in good faith and with reasonable grounds for believing it did not violate them.

/ / /

/ / /

/ / /

TWENTY-FOURTH AFFIRMATIVE DEFENSE

(No Restitution)

24. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims for recovery in the form of restitution, disgorgement, or injunctive relief under California Business and Professions Code section 17200, et seq., are barred with respect to any alleged violations that have been discontinued, ceased, or are not likely to recur.

TWENTY-FIFTH AFFIRMATIVE DEFENSE

(Compliance)

25. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims are barred in whole or in part because of Defendant's compliance with all applicable laws, statutes, and regulations, said compliance affording Defendant a safe harbor to any claim under Business and Professions Code section 17200, et seq.

TWENTY-SIXTH AFFIRMATIVE DEFENSE

(Bar On Punitive Damages)

26. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claim for punitive damages violates the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the U.S. Constitution and corresponding Articles of the California Constitution since: (a) the punitive damages claimed are vastly disproportionate to the actual damages claimed or available; (b) the award of punitive and/or statutory damages would constitute an arbitrary and capricious taking of Defendant's property which is unjustified by any rational governmental interest; and/or (c) the award of punitive damages with wholly standardless discretion is inconsistent with due process.

TWENTY-SEVENTH AFFIRMATIVE DEFENSE

(Bar On Damages)

27. As a separate and distinct affirmative defense, Defendant alleges that the damages alleged by Plaintiff are not reasonable and are thus barred by California Civil Code § 3359.

TWENTY-EIGHTH AFFIRMATIVE DEFENSE

(Statute of Limitations)

28. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims are barred in whole or in part to the extent Plaintiff seeks to recover for alleged harm that is outside of the applicable statute of limitations. Cal. Bus. & Prof. Code § 17208; Cal. Gov. Code § 12965.

TWENTY-NINTH AFFIRMATIVE DEFENSE

(Failure to Exhaust)

29. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims are barred, in whole or in part, because Plaintiff failed to exhaust his administrative remedies with the California Department of Fair Employment and Housing ("DFEH").

THIRTIETH AFFIRMATIVE DEFENSE

(No Class Certification)

30. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims on behalf of absent putative class members fail because Plaintiff cannot meet his burden of demonstrating that each requirement of class certification (including but not limited to ascertainability, adequacy, typicality, commonality, predominance, and superiority) is met here, and because certifying a class in the circumstances of this case would violate Defendant's rights to due process under the law. To the extent that class certification is nonetheless granted at a future date, Defendant alleges and asserts each of the defenses previously stated herein against each and every putative class member.

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

THIRTY-FIRST AFFIRMATIVE DEFENSE

(No Class Certification)

31. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims on behalf of absent putative class members fail because adjudication of this action on a class-wide basis, as applied to the facts and circumstances of this case, would constitute a denial of Defendant's rights to trial by jury and to substantive and procedural due process, in violation of the Fourteenth Amendment of the United States Constitution and corresponding provisions of state law. *See*, *e.g.*, *Wal-Mart v. Dukes*, 131 S. Ct. 2541 (2011).

THIRTY-SECOND AFFIRMATIVE DEFENSE

(Settlement, Accord and Satisfaction)

32. As a separate and distinct affirmative defense, Defendant alleges that Plaintiff's claims on behalf of absent putative class members fail to the extent that any putative class members entered into one or more settlements with Defendant or otherwise released Defendant from any liability as alleged in the Complaint. Any such released claims are barred in whole or in part by the doctrine of settlement, accord and satisfaction.

THIRTY-THIRD AFFIRMATIVE DEFENSE

(No Class Certification)

33. As a separate and distinct affirmative defense, Defendant alleges that to the extent Plaintiff seeks damages for emotional and/or physical injury suffered while employed by Defendant, Plaintiff's claims are preempted and barred by the exclusive remedy provisions of the California Workers' Compensation Act, California Labor Code sections 3600, et seq., and section 132a of the California Labor Code, and accordingly, this Court lacks subject matter jurisdiction over said claims.

/ / /

/ / /

/ / /

/ / /

THIRTY-FOURTH AFFIRMATIVE DEFENSE

(Labor Code Bar)

34. As a separate and distinct affirmative defense, Defendant alleges that to the extent Plaintiff seeks damages for emotional and/or physical injury suffered while employed by Defendant, Plaintiff's claims are preempted and barred by the exclusive remedy provisions of the California Workers' Compensation Act, California Labor Code sections 3600, et seq., and section 132a of the California Labor Code, and accordingly, this Court lacks subject matter jurisdiction over said claims.

RESERVATION OF ADDITIONAL DEFENSES

(Additional Defenses)

Defendant does not presently know all of the facts respecting the conduct of Plaintiff sufficient to allow it to state all affirmative and other defenses at this time. Defendant is informed and believes, however, that further investigation and discovery will reveal that it may have additional affirmative and other defenses available of which it is not fully aware at the present time. Defendant reserves the right to amend this Answer to assert said additional affirmative and other defenses should it later discover facts demonstrating the existence and applicability of same.

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

/ / /

PRAYER FOR RELIEF

WHEREFORE, Defendant prays for judgment as follows:

1. That Plaintiff's Complaint be dismissed in its entirety with prejudice;
2. That Plaintiff take nothing by way of his Complaint against Defendant;
3. That Defendant be awarded its costs of suit and attorney's fees; and
4. For such other and further relief as the Court deems just and proper.

Dated: April 8, 2025

/s/ Christine Fitzgerald
Rod M. Fliegel
Karimah J. Lamar
Christine Fitzgerald
Robert Geiger
LITTLER MENDELSON, P.C.
Attorneys for Defendant
THE VONS COMPANIES, INC.

4905-7175-1472.3 / 116930.1061